

EMPLOYMENT CONTRACT

劳动合同书

员工编号：M1791

员工姓名：李岩

签署日期：2024-04-01

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劳动合同
EMPLOYMENT CONTRACT

甲方：出门问问创新科技有限公司（以下简称“**公司**”）
Party A: \ (the “**Company**”)

注册地址：江苏省南京市南京市经济技术开发区红枫科技园D11栋第10层
Registered Address: Nanjing, Jiangsu, Chinese Mainland,

法定代表人：李志飞
Legal Representative: \

电话： 010-56177000
Telephone: 010-56177000

乙方（以下简称“**雇员**”）：**李岩**
Party B (the “**Employee**”)：\

身份证号码： 342221198909127011
ID Card Number: 342221198909127011

户籍所在地：安徽省宿州市砀山县西南门镇中心校595
Place of Registered Permanent Residence: \

邮寄地址：江苏省南京市江宁区殷富街殷巷东苑7栋602
Mailing Address: \

本劳动合同（以下简称“**合同**”）由**公司**，一家根据中华人民共和国(“**中国**”)法律组成和存续的有限责任公司，和**雇员**于 2024-04-01 签订。
This EMPLOYMENT CONTRACT (this “**Contract**”) is entered into as of 2024-04-01 in Wuhan, the People’s Republic of China (“**PRC**”), between the Company, a limited liability company organized and existing under PRC laws, and the Employee.

第一条
ARTICLE 1
总则
GENERAL PROVISIONS

1.1 聘用 (Employment)

根据本合同规定的条款和条件，公司特此提出自本合同第2.1条规定的起始之日起正式聘用雇员，雇员特此同意受聘于公司，担任_____Android 工程师_____职位。雇员具体聘用条件详见附件I。

The Company hereby offers formal employment to the Employee, and the Employee hereby agrees to be employed by the Company, as_________Position, starting from the commencement date set forth under Article 2.1 hereof in accordance with the terms and conditions of this Contract. Specific employment condition relating to Employee shall be referred to Annex I.

雇员同意并认可，雇员与公司在本合同下的雇佣关系是基于并且建立在以下前提条件之上：(1)雇员提供给公司的与其雇佣关系有关的信息和文件（包括但不限于雇员的身份、资质、健康状况等）都是真实的；(2)根据中国相关法律法规，雇员可以在中国大陆合法工作和居留；(3) 雇员接受公司的雇佣不会违反雇员对任何第三方承担的义务；以及(4) 雇员没有（且以前也没有）受到任何地区的监管机构或其他政府机构的指控或调查，且此种指控或调查可能导致公司撤销对雇员的雇佣。雇员进一步同意并认可，经公司要求，雇员有责任和义务在本合同签署之日起三日内向公司提供有关上述陈述和保证的相关资料及证件。如雇员违反上述任何陈述或保证，或未能应公司要求向公司提交任何有关上述陈述和保证的相关资料及证件，公司有权根据本合同第7.1条规定立即解雇雇员。

The Employee consents and recognizes that his/her employment with the Company under this Contract is subject to and contingent upon the following: (a) the information and documents (including but not limited to identity, qualifications, health status of the Employee) provided by the Employee to the Company in connection with his/her employment are truthful and authentic; (b) the Employee is entitled to reside and work legally in chinese mainland under applicable PRC laws and regulations; (c) the Employee does not breach any obligation owed to any third party by accepting employment with the Company; and (d) the Employee is not (and has not been) the subject of any complaint or investigation by any regulatory body or governmental entity of any jurisdiction, which may cause the Company to withdraw its offer of employment to the Employee. The Employee further consents and recognizes that upon the Company's request; it is his/her obligation and duty to provide the Company with documentation or certificates relating to such representations and warranties. If the Employee breaches any of such representations or warranties, or fails to provide any documentation or certificates relating to such representations or warranties upon the Company's request, the Company has right to dismiss the Employee immediately in accordance with Section 7.1 hereof.

第二条
ARTICLE 2
期限
TERM

2.1 期限 (Term)

固定期限 ☑

本合同的期限自 2024-04-01 起至 2027-03-31 （以下简称“**合同期限**”），除非本合同根据其条款提前终止。

无固定期限 ☐

本合同的期限自 / 起，无终止日期。

2.2 试用期 (Probationary Period)

新雇员须经过为期 0 个月的试用期（“**试用期**”），自 2021-03-22 起至 2021-09-22 止。

以符合适用法律法规为前提，公司依据以下标准规定试用期：（1）劳动合同期限为三个月以上（含三个月）不满一年的，试用期为一个月；（2）劳动合同期限为一年以上（含一年）不满三年的，试用期为二个月；（3）劳动合同期限为三年以上（含三年），试用期为六个月。

Subject to the applicable laws and regulations, the Company implements the following standards for the probationary period: (a) for a contract term of three months or longer but shorter than one year, the probationary period shall be one month; (b) for a contract term of one year or longer but shorter than three years, the probationary period shall be two months; (c) for a contract term of three years or longer, the probationary period shall be six months.

2.3 续签合同 (Renewal of Contract)

本合同在合同期满时自动终止。公司可以在合同期限预计届满前一个月向雇员提出续签本合同，或通知雇员公司无意续签本合同。如果公司提出续签本合同，雇员应在合同期限届满前或公司规定的期限内（以较早者为准）接受或拒绝续签。如果雇员在合同期限届满前或公司规定的期限内未予答复，则雇员应被视为已拒绝续签本合同。

This Contract shall expire at the end of the Term. Within one month prior to the expiration of the Term, the Company may either offer the Employee a renewal of this Contract or inform the Employee that the Company does not intend to renew this Contract. If the Company offers to renew this Contract, the Employee shall accept or refuse the renewal prior to the expiration of the Term or during the period designated by the Company (whichever is earlier). In the event that the Employee fails to respond prior to the expiration of the Term or during the period designated by the Company, the Employee shall be deemed to have refused to renew this Contract.

第三条
ARTICLE 3
工作范围
SCOPE OF WORK

3.1 工作范围 (Scope of Work)

总经理可根据公司的需要不时确定雇员的职责范围。公司可重新指派雇员担任公司另外的职务，或分配雇员到其他地点工作。雇员的工资和福利可按照新工作或新工作地点进行适当地增减。

The General Manager shall determine the scope of the Employee's duties from time to time in accordance with the needs of the Company. The Company may assign the Employee to a different position in the Company or to work at a different location. If appropriate, the level of the Employee's salary and benefits may be increased or decreased in accordance with such new position or new work location.

3.2 雇员的职责 (Duties of Employee)

雇员应尽其最大努力按照其上级主管的指示认真完成本职工作。雇员应与其主管及同事配合工作，并遵守本合同条款及公司员工手册（以下简称"**员工手册**"）、商业行为及道德准则或公司政策中载明的工作守则或公司以其他形式颁布的工作守则（通称"**公司规章制度**"）。公司对于雇员的工作内容，即主要工作职责和工作表现要求，通过岗位说明书或其他文件作相应约定，详见附件I。因工作需要，在征求雇员同意后，公司可以调整雇员的工作岗位。雇员经考核属于不能胜任该岗位工作时，公司有权单方面调整雇员的工作岗位。岗位发生变化后，薪资相应变化。

The Employee shall diligently perform the Employee's duties to the best of the Employee's ability in accordance with the instructions of the Employee's supervisors, work in co-operation with the Employee's supervisors and colleagues, and observe the terms of this Contract and the work rules of the Company contained in the Company's Employee Handbook (the "**Employee Handbook**"), Code of Business Conduct and Ethics, Company policies, or as otherwise issued by the Company (collectively, "**Company Rules and Regulations**"). The responsibilities and content of work of the Employee shall be referred to the Position Description set forth in Annex I. Considering the requirements of the work and/or business need, the Company may adjust the position of the Employee after consulting the opinion of the Employee. If the Employee is assessed to be incompetent for his/her original position, the Company has the right to adjust the position of the Employee and the Employee shall obey such adjustment. The salary of the Employee shall be altered correspondingly after the variation of his/her position.

3.3 休假 (Leave)

雇员有权根据适用法律法规、本合同及员工手册享受法定假日、年假和其他带薪休假，包括病假、婚假、产假、丧假以及中国全国性节假日。

The Employee shall be entitled to legal holidays, annual leave and other paid leaves, including sick, marital, maternity, funeral leave, and the PRC National holidays, in accordance with applicable laws and regulations, this Contract, and the Employee Handbook.

3.4 工作日程 (Work Schedule)

公司会根据相关法律法规执行以下相应工时制。

Company may implement following working hours' system subjected to the relevant laws and regulations.

执行标准工时工作制的，雇员的工作时间为每天八小时，不包括用餐和休息时间。每周（平均）工作五天，总工作时间每周（平均）四十小时。雇员工作时间和休息时间按照国家、政府相关法律、法规，以及公司经民主程序制定的相关规章制度执行。

The normal working hours of the Employee shall be eight hours each working day, excluding the breaks for meals and rest. The Employee shall work five days per week (on average), which means forty hours in total per week (on average). The working hours and rest shall be fully compliant with relevant state and governmental laws and regulations and as well as relevant policies and regimes formulated by company after democratic procedures.

经劳动行政部门批准执行综合计算工时工作制的，以季度/年为计算工时的周期，平均日和平均周工作时间不超过国家，政府法律，法规，规章规定的法定标准工作时间。

Comprehensive working hour system upon obtaining the approval from the labor administrative department shall be calculated by quarter/ year as the computation period of working hours. Average working hours in a day or a week shall not exceed the normal working hours' system specified by state and governmental laws and regulations.

执行不定时工作制的，在保证完成工作任务的情况下，雇员可自行安排工作时间。

The Employee who entered the contract with the non-fixed working hour system may self-arrange his/ her working hours as long as he is able to ensure working tasks can be completed.

如经劳动主管部门批准工时制度进行调整或变化的，雇员应服从并遵守新的工时制度。原工作制度随之变更。雇员上下班的具体时间，由公司根据生产经营需要安排。

If the working hours' system is altered or varied upon approval of the labor administrative department, the Employee shall obey and abide by the new working hours system. In this case, the original working hours' system shall be altered accordingly and the precise time for beginning and ending of work shall be arranged by the Company according to actual need of the production and operation.

公司经与雇员协商可要求雇员工作合理的额外工作时数，或在法定节假日、或在雇员依照中国法律法规有权享受休息或休假的其它日期加班。雇员的加班工作补偿将依照根据政府有关规定所制定的公司规章制度执行。

After consultation with the Employee, the Company may request the Employee to work reasonable additional hours and/or on legal holidays or other days when the

Employee is entitled to rest or leave in accordance with applicable PRC laws and regulations. Overtime work will be compensated according to the company's policies in accordance with the relevant government regulations.

雇员有权根据国家规定和公司规章制度享受所有的法定节假日和其它带薪休假。

The Employee is entitled to all legal holidays and other paid leaves of absence in accordance with the laws and regulations of the PRC and rules of the company.

第四条
ARTICLE 4
薪酬
REMUNERATION

4.1 工资 (Salary)

雇员在试用期内及试用期后的税前工资，由公司和员工另行书面商定，详见附件I。

The amount of the Employee's salary during and after the Probationary Period shall be separately agreed in writing by the Company and the Employee, which set forth in Annex I.

4.2 支付 (Payment)

在扣除需由公司代扣代缴的雇员个人所得税、雇员所承担的各种社会保险费或适用法律法规规定的其他款项后，公司应向雇员本人直接支付所有薪酬。但是，雇员应对其个人所得税和任何其它针对其薪酬的扣缴、费用或税项自行承担责任。

除非发生不可抗力或者非公司原因造成的迟延，公司应不迟于每月初的10个自然日内将员工上月税后工资汇入员工的银行账户。

Unless delay is caused by force majeure or not due to company's reason, the Company will pay all remunerations directly to the Employee, less any amounts required to be withheld by the Company for the Employee's individual income tax, social insurance premiums, or other amounts in accordance with applicable laws or regulations. But the Employee shall have the sole responsibility for the payment of the Employee's individual income tax and any other withholdings, charges, or taxes imposed on the Employee's remunerations.

The Employee's after-tax monthly salary shall be paid into a bank account nominated by the Employee no later than the 10th Natural day of the following calendar month.

第五条
ARTICLE 5
社会保险和劳动保护、劳动条件和职业危害防护
SOCIAL INSURANCE AND EMPLOYMENT PROTECTION, EMPLOYMENT CONDITIONS AND PROTECTION AGAINST OCCUPATIONAL HAZARDS

5.1 社会保险 (Social Insurance)

公司雇用雇员，公司应依法支付适用法律法规规定的必须缴纳的社会保险费。雇员的其他福利将在员工手册中进行规定。雇员确认并同意，在雇佣期间，在不减少税前固定月基本工资金额的前提下，公司有权依法调整薪酬福利的组成结构、计算标准和支付方式。公司发放的奖金、提供的福利可根据公司依法制定的奖金福利制度政策和实际情况作出调整。

The Company shall lawfully make contributions to the social insurance premiums that are mandatory under applicable laws and regulations in connection with the Company's employment of the Employee. Additional benefits for the Employee shall be specified in the Employee Handbook. The Employee acknowledges and agrees that, without reducing the aforesaid monthly pretax base salary, during the employment, the Company is entitled to change the components, structure, calculation and payment method of the compensation and benefits at its own discretion. The bonus and benefits offered by the Company may be changed according to regulations regarding incentive and benefits constituted by the Company according to bonus and benefits policies and actual conditions of the company.

5.2 劳动保护、劳动条件和职业危害防护 (Employment Protection, Employment Conditions and Protection against Occupational Hazards)

雇员的劳动保护、劳动条件和职业危害防护应根据中国正式颁布的法律法规办理。

Employment protection for the Employee shall be handled in accordance with the officially-promulgated PRC laws and regulations.

第六条
ARTICLE 6
劳动纪律
EMPLOYMENT DISCIPLINE

6.1 劳动纪律 (Employment Discipline)

雇员应遵守公司规章制度，具体内容分别载于“员工手册”和“商业行为及道德准则”。上述文件为本合同的有效组成部分。雇员有义务在公司内部网站上进行自行阅读，了解手册及准则的内容并予以充分遵守（包括员工手册和商业行为及道德准则和其他文件规定的政策和规程）。员工理解并知悉公司有按照适用法律的规定对上述文件进行不时修改以及不时发布其他规章制度，雇员应当在公司书面通知的情况下，在公司内部网站阅读不时修订的规章制度并遵守它。

The Employee shall comply with the Company's Rules and Regulations, and the details are written in the Employee Handbook and Code of Business Conduct and Ethics which are deemed as the effective integral of this Contract. Employee has the obligation to read, understand the contents of and fully adhere to all of the policies and procedures set out in the Handbook, Code of Business Conduct and Ethics and other documentation published on the intranet of Company at intranet. Employee shall also understand and acknowledge that the Company is entitled to supplement and amend aforementioned policies and regulations according to laws and regulations from time to time and the Employee shall regularly read such newly amended regulations through intranet of Company at intranet upon Company's written notice and obey them.

6.2 违反纪律 (Breach of Discipline)

如果雇员违反公司任何劳动纪律或任何公司规章制度（包括但不限于安全制度），从而给公司造成损害，或给雇员本人或他人造成伤害，或未达到雇员职位所要求的工作表现标准，公司有权给予雇员纪律处分。情况严重者，公司可根据下述第七条解雇雇员。公司的处分权利在员工手册和公司不时颁布的其他材料中规定。

If the Employee violates any Company disciplinary rules or Company Rules and Regulations (including but not limited to safety rules), which causes damage to the Company or injury to the Employee himself/herself or to other persons, or the Employee fails to achieve the performance standards required by the Employee's work position, the Company may take disciplinary action(s) against the Employee. Under serious circumstances, the Company may discharge the Employee in accordance with Article 7 hereof. The Company's rights to take disciplinary actions are set forth in the Employee Handbook and other documents issued by the Company from time to time.

6.3 雇员必须服从公司的管理并在规定时间内完成公司指定的工作。

The Employee shall act in a way in compliance with the administration requirements of the Company and complete work designated by the Company within the time limit.

第七条
ARTICLE 7
由公司解除合同
TERMINATION BY THE COMPANY

7.1 无需通知的解雇 (Dismissal without Notice)

如雇员出现如下情况，公司可随时解雇雇员而无需提前通知：

The Company may dismiss the Employee at any time without prior notice if the Employee:

（1） 该雇员在试用期间被证明不符合公司的录用条件；

is proved not to satisfy the Company's performance standards during the Employee's probationary period;

（2） 严重违反有关劳动纪律或任何公司规章制度或违反本合同条款；

commits a serious breach of the employment disciplinary rule or any Company Rules and Regulations, or breaches the terms of this Contract;

（3） 严重失职或营私舞弊给公司造成重大损害；

commits an act of serious dereliction of duty, takes bribes, or engages in any malpractice for personal profits, causing serious harm to the Company; or

（4） 雇员同时为其他雇主工作，对其在本合同下的工作造成严重影响，或者经公司提出，拒不改正；

simultaneously works for other employer(s), and such work seriously affects the Employee's performance under this Contract, or the Employee refuses to correct the work situation after the Company requests him/her to do so;

（5） 雇员通过欺诈、胁迫或强制的方式致使公司在违背真实意思的情况下与其签订本合同或修订本合同；

causes the Company to enter into this Contract or any amendment(s) thereto against its real thoughts through fraud, duress, or coercion;

（6） 被依法追究刑事责任；或

is found guilty of a criminal offence; or

（7） 法律法规规定无需提前通知的其他情形。

falls in other situations under which applicable laws or regulations permit dismissal of the Employee without notice.

7.2 发出通知后解雇 (Dismissal with Notice)

如果出现下列情况，公司可经提前三十(30)天书面通知雇员或者额外支付雇员一个月工资代替提前通知期从而解雇雇员：

The Company may dismiss the Employee with thirty (30) days prior written notice, or pay the Employee one month's additional base salary in lieu of notice, if:

（1） 雇员患有非职业性的疾病，或非因公负伤，在规定的医疗期满后无法继续从事雇员原来的工作或由公司指派的其他工作；

the Employee suffers from a non-occupational disease or has sustained an injury that is not work-related, and is unable to resume the Employee's original work or other work assigned by the Company upon the conclusion of the required medical-treatment period;

（2） 雇员无法胜任其职并在培训后或调换岗位后仍不能胜任其职；

the Employee is incapable of performing the duties of the Employee's position and continues to be incapable of achieving an adequate level of performance after training or transfer to a different position;

（3） 由于本合同签订时所依据的客观情况发生重大变化，导致无法履行本合同，且公司和雇员未能就修改本合同达成一致；

a major change in the objective circumstances under which this Contract was entered into has rendered this Contract incapable of being performed and the Company and the Employee have failed to reach an agreement on the amendment of this Contract;

（4） 公司依企业破产法规定进行重整，或生产经营出现严重困难，或其他因劳动合同订立时所依据的客观经济情况发生重大变化，致使劳动合同无法履行的,或公司因公司转产、重大技术革新或经营方式调整经变更劳动合同后，仍需裁员，且公司已与公司工会或雇员协商，并在其他方面符合有关法律规定；或

the Company needs to reduce the number of its employees due to restructuring the Company in accordance with the enterprise bankruptcy law, or as a result of the occurrence of major production or operational problems, or other change in the objective economic circumstances pursuant to which this Contract was entered into has rendered this Contract incapable of being carried out,

or undertaking business transformation, performing significant technical renovations or adjustment of its business mode and redundancy is still inevitable after amendment of the employment contract, and has consulted with the Company's trade union or employees and otherwise complied with relevant legal requirements; or

（5） 法律法规允许的其他原因。

for any other reason permissible under the applicable laws and regulations.

在通知期内，公司有权要求雇员停止工作和/或从事任何公司业务并且向公司指定的其他员工完成其工作的移交。

During the notice period, the Company has the right to require that the Employee stop working and/or engaging in any Company business and that the Employee complete the transfer of his/her duties to another employee designated by the Company.

7.3 双方同意解除 (Termination by Mutual Consent)

在合同期限内任何时候公司和雇员有权经双方协商一致而解除本合同。

The Company and the Employee may terminate this Contract anytime based on mutual consent.

7.4 经济补偿金 (Severance Pay)

如果公司根据第7.2条和第7.3条解雇雇员，或未根据第2.3条提出续签本合同的，则公司应根据适用法律法规给予雇员经济补偿金（如有的话）。

If the Company dismisses the Employee pursuant to Article 7.2 and Article 7.3, or if the Company does not propose to renew this Contract under Article 2.3, the Company shall pay severance (if any) to the Employee in accordance with applicable laws and regulations.

第八条
ARTICLE 8
由雇员解除合同
TERMINATION BY THE EMPLOYEE

8.1 发出通知后辞职 (Resignation with Notice)

雇员可随时辞职，但须提前三十（30）天书面通知公司。在试用期内，雇员提前三（3）天书面通知公司，可以解除本合同。如果雇员依据本条款辞职，公司无义务

就本合同的解除向雇员支付任何经济补偿金。公司有权让雇员在通知期内停止工作，和/或从事任何公司业务并且完成工作移交。

The Employee may at any time resign from employment with the Company, provided that the Employee gives the Company thirty (30) days prior written notice. During the Probationary Period, the Employee may terminate this Contract with three (3) days prior written notice to the Company. If the Employee resigns pursuant to this Article, the Company shall have no obligation to make any severance payment to the Employee in connection with the termination of this Contract. The Company is entitled to require that the Employee stop working and/or engaging in any Company business and complete the transfer of the Employee's duties.

8.2 偿还培训费 (Repayment of Training Expenses)

曾参加公司培训的雇员如其聘用依法被提前解除，则该雇员应根据与公司签署的培训合同向公司赔偿公司实际支出的培训费用。

If the employment of the Employee who has received training from the Company is terminated early in accordance with law, the Employee shall repay the Company the training expenses actually incurred by the Company in accordance with the training contract entered into between the Employee and the Company.

第九条
ARTICLE 9
保密和守法
CONFIDENTIALITY AND COMPLIANCE

9.1 保密 (Confidentiality)

作为被公司雇用的条件的一部分，雇员应在签订本合同之日与公司签订格式如本合同附件II的"**保密信息、发明转让、不竞争和不引诱协议**"。

As part of the conditions for employment by the Company, the Employee shall enter into a separate Confidential Information, Invention Assignment, Non-competition and Non-solicitation Agreement in the form attached to this Contract as Annex II with the Company on the same date as this Contract.

9.2 归还资料 (Return of Documents)

本合同解除或期满终止时，雇员应立即将其拥有的公司所有图纸、蓝图、备忘录、客户名录、公式、财务报表、人事或营销资料以及所有其他文件（包括原件和复印件）归还公司。

Upon termination or expiration of this Contract, the Employee shall promptly return to the Company all drawings, blueprints, memoranda, client lists, formulae, financial statements, personnel or marketing information of the Company including originals and copies in the possession of the Employee.

9.3 兼职 (Concurrent Position)

未经公司事先书面许可，雇员不得在合同期限内接受任何其他经济组织的聘用。

The Employee shall not accept employment from any other economic organization during the Term without the prior written permission of the Company.

9.4 遵纪守法 (Compliance)

雇员不得在知道或有理由知道向政府官员、政治党派或其官员、政治职务候选人或其他任何人提供、许诺或赠送金钱或任何其他有价物品是出于影响上述人员作为、不作为或决定，以获取或保留公司业务或将业务分派他人的目的的情况下，向上述人员或指使他人向上述人员提供、许诺或赠送金钱或任何其他有价物品。

The Employee shall not, and shall not direct any other person to, offer, promise or give to any government official, any political party or official thereof, any candidate for political office, or any other person any money or any other thing of value while knowing or having reason to know that all or a portion of such money or thing of value will be offered, promised, or given directly to any of those listed above for the purpose of influencing any action, omission, or decision by the recipient in order to obtain or retain business for the Company or to direct business to another.

第十条
ARTICLE 10
培训
TRAINING

10.1 培训 (Training)

若公司认为合适可要求雇员参加场外培训计划。经公司要求，雇员必须与公司签订一份独立的培训合同。

The Company may require the Employee to undertake an off-site training program if the Company considers it appropriate. Upon the request of the Company, the Employee shall enter into a separate training contract with the Company.

第十一条
ARTICLE 11
违约责任
BREACH LIABILITIES

11.1 违约责任 (Breach Liabilities)

雇员应依据有关法律法规规定向公司赔偿因其违反本合同而给公司造成的损害或经济损失。

The Employee shall be liable, in accordance with any relevant laws and regulations, for any damages or economic losses that the Company suffers as a result of the breach of this Contract.

如果雇员未能遵守任何中国法律或者由于接受公司的聘用而违反了与其原雇主或第三方的任何协议，雇员应就由此所产生的或与之有关的一切索赔、责任、损害赔偿和支出（包括合理的律师费和诉讼费）根据适用的法律法规规定赔偿公司，并使公司免受损失。

In accordance with applicable laws and regulations, the Employee shall indemnify the Company and hold it harmless from and against all claims, liabilities, damages and expenses, including reasonable attorneys' fees and litigation costs, arising out of or in connection with the Employee's failure to comply with any PRC laws or the Employee's violation of any agreement with his/her previous employer(s) or any third party as a result of accepting employment with the Company.

第十二条
ARTICLE 12
争议的解决
DISPUTE RESOLUTION

12.1 争议的解决 (Dispute Resolution)

双方应按如下程序解决劳动争议：

The parties shall settle employment disputes in accordance with the following procedure:

（1） 双方应首先试图通过协商解决因履行本合同而引起的任何争议。

The parties shall first try to settle any dispute arising from the performance of this Contract through consultation.

（2） 如通过协商未能解决争议，双方应将争议提请公司成立地的劳动争议仲裁委员会仲裁。

If settlement cannot be reached through consultation, the parties shall apply for arbitration to a local labor dispute arbitration commission in the place where the Company is formed.

本条规定不适用于附件II。附件II应当适用其单独的争议解决条款。

This foregoing dispute-resolution provision does not apply to Annex II, which shall be subject to the dispute-resolution provisions in the Annex itself.

第十三条
ARTICLE 13
附则
MISCELLANEOUS

13.1 生效日 (Effective Date)

本合同自双方签署日起生效。本合同须经双方签订书面合同，方可进行修改。本合同取代公司和雇员此前签署的劳动合同（如有的话）。在本合同签署后，如因中国法律法规的变更需对本合同作出修订，雇员特此同意由公司依照该等适用法律法规的要求对本合同进行修订。

This Contract shall come into effect when it is signed by the parties and may be amended only by a written agreement between the parties. This Contract shall supersede the employment contract (if any) previously entered into between the Company and the Employee. The Employee specifically agrees that if any change of the PRC laws or regulations requires amending this Contract pursuant to such laws or regulations, the Company has the right to make such amendment(s) in accordance with such applicable laws or regulations.

13.2 公司规章 (Company Rules)

雇员应遵守员工手册（可经不时依法修订）和公司不时颁布的其他制度、守则和材料。

The Employee shall abide by the Employee Handbook, as amended from time to time in accordance with the law, and other system, rules and materials issued by the Company from time to time.

13.3 公司名称变更 (Change of Company Name)

公司和雇员确认公司有权完全按照其自行的决定不时变更公司名称。在公司名称根据有关的法律法规变更后，本合同将继续有效，双方无须重新签署合同来反映公司名称的变更。

Both the Company and the Employee acknowledge that the Company has the right to change the Company's name in the Company's sole discretion from time to time. The parties further acknowledge that this Contract shall remain valid after the Company's name has been changed in accordance with relevant laws and regulations, and the parties do not need to re-sign this Contract to reflect the change of the Company's name.

如果公司变更其名称，应向雇员发出有关名称变更的通知，该等通知应构成对本合同中公司名称的修改，并且双方无需进一步采取其它行动。

In the event the Company changes its name, a notice of such name change shall be provided to the Employee, and such notice shall constitute an amendment of the Company's name in this Contract without requiring any further action from any party.

13.4 合同的变更 (Contract Amendment)

对本合同的任何变更必须得到雇佣双方的书面同意。但在下列情形下，雇员应当根据公司的要求进行劳动合同变更：

Any amendments to the Contract shall be subject to written consent by both the Employer and the Employee. However, under the following circumstances, the Employee must give his/her written consent to the amendments to the Labor Contract as requested by the Company:

（1）公司根据工作需要对雇员的工作内容、地点进行临时性的调整和变更；

The Company makes temporary adjustment or modification on the content of work or the place of work of the Employee according to actual need of the work;

（2）雇员不胜任工作时，公司对雇员工作岗位、工作内容以及薪水的调整；

The position, working content and salary of the Employee are adjusted because he/she is incompetent for his/her original work;

（3）雇员医疗期满后不能从事原工作时，公司对雇员工作岗位、工作内容以及薪水的调整；

The Employee cannot undertake his/her original work after medical treatment period and the Company consequently adjusts his/her position, working contents and salary;

（4）其他法律法规规定可以单方调整劳动合同内容的行为。

Other unilateral amendments to the labor contract by the Employer as permitted by applicable laws or regulations.

13.5 适用法律 (Governing Law)

本合同的订立、生效、解释、执行、修订、解除及终止均适用中国法律。

The formation, validity, interpretation, execution, amendment, termination and expiration of this Contract shall be governed by the PRC law.

13.6 语言 (Language)

本合同以及相关附件均以中英文签署。两种语言文本具有同等效力，若有不一致之处，以中文文本为准。

This Contract and related Annexes are written in both English and Chinese. Both language version shall have equal validity. In the case of discrepancy, the Chinese version shall prevail.

附件Annex：

I. 聘用条件和岗位描述（Employment Condition and Position Description）

[下附签字页]

[Signatures page follows]

此证，公司和雇员已于首页载明日期签署本合同正本两（2）份。

IN WITNESS WHEREOF, the Company and the Employee have caused this Contract to be executed on the date first written above in two (2) originals.

出门问问创新科技有限公司

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盖章 (Signature or Seal)：

法定代表人 (Legal Representative)：李志飞

签订日期（Date）：2024-04-01

本人声明：

I hereby declare that

（1） 本人已收悉如上文件；

I have received the labor contract and all related annexes;

（2） 本人已阅读，理解并接受如上文件；

I have read and understood the labor contract and all related annexes;

（3） 本人理解如上文件共同构成本人雇佣条款和雇佣条件；

I have understood that the labor contract and all related annexes constitute the integral parts of the employment terms and conditions;

（4）本人承诺我将确保我的行为符合以上文件的要求。

I agree to abide by the terms and conditions contained in the labor contract and all related annexes.

雇员姓名 (Employee Name)：

签订日期（Date）：2024-04-01